



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8510 (EXTENSION)
SECOND REVISION March 30, 1982
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8510 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to January 31, 1991. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

MAR 14 1989

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

The Dow Chemical Company
Freeport, TX

January 17, 1989



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

**DOT-E 8510
(SECOND CORRECTED COPY)**

1. Dow Chemical Company, Freeport, Texas, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a certain flammable solid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of salt coated magnesium granules in a non-DOT specification container, and provides no relief from any regulation other than as specifically stated.
2. **BASIS.** This exemption is based on Dow Chemical Company's application dated October 15, 1980 and additional information dated January 21, and December 14, 1981, and February 17, 1982, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.
3. **HAZARDOUS MATERIALS (Descriptor and class).** Salt coated magnesium granules classed as flammable solid.
4. **PROPER SHIPPING NAME (49 CFR 172.101).** Magnesium granules coated.
5. **REGULATION AFFECTED.** 49 CFR 173.178.
6. **MODES OF TRANSPORTATION AUTHORIZED.** Motor vehicle, rail freight, cargo vessel.
7. **SAFETY CONTROL MEASURES.** Packaging prescribed is a non-DOT specification wax-impregnated, intermediate bulk, fiberboard box with an inside polyethylene bag at least 5 mils thick. The box is approximately 42" x 42" x 30" in dimension and must be constructed and tested according to the specifications submitted with the application. Each loaded package must be individually strapped or shrink-wrapped to its own pallet. Maximum net weight of each box shall not exceed 2000 pounds.
8. **SPECIAL PROVISIONS.**
 - a. Persons who receive packages covered by this exemption may reshipe them pursuant to the provisions of 49 CFR 173.22a.
 - b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.
 - c. For shipment by water, the packages must be placed in a freight container. No break-bulk shipment is authorized by water. The freight container must be plainly marked on two sides in letters at least two inches high on a contrasting background, "DOT-E 8510". The freight container must be stowed on deck only.
9. **REPORTING REQUIREMENTS.** Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.
10. **EXPIRATION DATE.** March 15, 1983.

Continuation of DOT-E 8510 2nd corrected copy

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Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

MAR 30 1982

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation,
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Dist: USCG, FHWA, FRA

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